

**JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN
COMPETITION (OVERSEAS CONTRACTING ACTIVITIES)**

PR15273192 - FM - NCh Boiler repairs - piping part

1. *I recommend that Embassy Budapest use other than full and open competition for the acquisition of PR15273192- North Chancery boilers repair – piping part. The estimated cost is \$59,700.*

2. Nature and/or description of the action being approved.

Existing boilers are under replacement; however, boiler manufacturer requires protecting the boilers by a separating heat exchanger from the old system. The design is ready for the pipe modifications, the contractor who already worked on the piping system during emergency is available to execute the works immediately, in order for boiler contractor to be able to start-up the boilers.

3. A description of the supplies or services required to meet the agency's needs.

Contractor needs to replace existing piping in the boiler room to make space of boiler protection elements to be installed.

4. An identification of the statutory authority permitting other than full and open competition.

FAR 6.302-2 Unusual and compelling urgency

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited (for sole source acquisitions; also required for unusual and compelling urgency where more than one offer will not be solicited).

The works are time critical as we are operating still with the old, malfunctioning boiler, causing occasional stops in the heating of the North Chancery building.

The contractor, SU-Fa Profi Kft, already worked with us on several piping projects, they are the ones who provided emergency support during our major heating outage to be able to put back the heating system into operation the soonest. They are familiar with U.S. Embassy requirements and standards.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable. The description should include whether a FedBizOpps notice was or will be publicized, as required by FAR 5.2, and if not, which exception under FAR 5.202 applies (e.g., blanket waiver provided in DOSAR 605.202-70).

The JOFOC is to be published at SAM.gov per the regulations.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The proposed contractor has been awarded competitive orders before which shows that their prices are fair and reasonable.

8. A description of the market survey conducted and the results or a statement of the reasons a market survey was not conducted.

Survey was not conducted; see section 5.

9. Any other facts supporting the use of other than full and open competition.

None.

10. A listing of sources, if any that expressed, in writing, an interest in the acquisition.

None

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

Not applicable at this time given the urgency of the issue.

CERTIFICATION

I certify that this justification is accurate and contains complete data necessary to support the recommendation for other than full and open competition.

04/11/2025

Date



Name Krisztian B. Kovacs

Title Building Engineer - Supervisor

APPROVAL

I approve other than full and open competition for this order.

Date

Eric C. Moore, Contracting Officer